

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUCL053868: PAUL HOLTBY, AN INDIVIDUAL vs VIVINT SOLAR
DEVELOPER, LLC, A DELAWARE LIMITED LIABILITY COMPANY, et al.**

08/03/2026 in Department 42

Motion to Compel Arbitration and Dismiss or Stay Action

Please Note for August 3, 2026: Presiding Judge Matthew P. Guasco is handling the Courtroom 42 law and motion and case management calendar in the absence of Hon. Ronda J. McKaig, Judge of the Superior Court, who is serving on assignment to the Court of Appeal, Second District, Division Six.

The following is the Court’s tentative decision concerning the motion of defendants, Vivint Solar Developer, LLC, and Sunrun, Inc. (“defendants”), to compel binding arbitration as to the Complaint of plaintiff, Paul Holtby (“plaintiff”):

For the following reasons, the Court GRANTS defendants’ motion to compel binding arbitration:

(1) “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists” (Code of Civ. Proc., § 1281.2.) The Court is permitted to deny a petition to compel arbitration in the event that there is no binding agreement to arbitrate, the right to arbitrate has been waived by the party compelling arbitration, grounds exist to revoke the agreement to arbitrate, or a party subject to arbitration is a party in a pending action or proceeding arising out of the same events, occurrences or transactions as those which would be arbitrated. (Code of Civ. Proc., § 1281.2.)

(2) “The party seeking to compel arbitration bears the burden of proving by a preponderance of the evidence an agreement to arbitrate exists.” (*Nixon v. AmeriHome Mortgage Co., LLC* (2021) 67 Cal.App.5th 934, 946.) “The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent’s signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543–544; see also Cal. Rules of Court, rule 3.1330.) “[A] party may establish that the electronic signature was ‘the act of the person’ by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions.” (*Bannister, supra*, at p. 545.) When the validity of the signature is challenged, the moving party must establish by a preponderance of the evidence that the signature is authentic. (*Id.* at p. 544.)

(3) Here, defendants have included a copy of the “Residential Power Purchase Agreement” (“PPA”) which resulted in the installation of solar panels on the roof of the subject property. The PPA was entered into and signed by Vivint Solar Developer, LLC (which is an “affiliated entity” of Sunrun Inc. per the declaration of Kelley Molton, ¶2) and Janet Holtby, the owner of the subject property at issue as alleged in the Complaint at ¶¶8-9. Plaintiff also signed the PPA, which expressly indicates that he was also a “property owner.”

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(4) Plaintiff does not contest or even directly address the existence of the PPA that is attached to the moving papers. There is no challenge to the authenticity of Plaintiff's signature, or his mother's. Instead, Plaintiff repeats the allegations of the Complaint, arguing that a ***different agreement*** between Vivint, him and "Diane Holtby" is not enforceable. But the agreement attached to the Motion and the Molton declaration differs from the agreement attached to the Complaint. The PPA attached to the moving papers has its original AR No. crossed out and a new number listed (which is the same AR No. listed on the agreement attached to the Complaint), and it states that Janet Holtby and Paul Holtby are the customers instead of Diane Holtby and Paul Holtby. Both agreements were dated the same day, May 16, 2014, and it is not clear which was signed first. They both have the same AR No, 3571786.

(5) Plaintiff, however, does not directly attack the PPA that defendants assert is the operative agreement to arbitrate. Plaintiff does not claim that he did not sign the agreement, and does not declare that his mother did not sign the PPA. Plaintiff simply declares that he did not sign the name "Diane Holtby" and that he "saw the representative of Defendant Vivint, Adam Dean, sign the name of "Diane Holtby" on the contract." (Ptf. Decl, ¶3) The Court finds that the allegations about the agreement containing the name or signature, "Diane Holtby," are immaterial. Plaintiff does not make any representation that his mother did not sign the PPA, or claim that he himself did not sign the PPA. Likewise, there is no declaration from his mother, Janet Holtby, stating that she did not sign the agreement. Indeed, Plaintiff admits that he signed an agreement with Vivint, and he makes no mention of the relevant and operative PPA identified by Defendant. There are insufficient facts contesting the existence of the operative PPA. Thus, the Court finds that defendants have met their burden of proving by a preponderance of the evidence that the PPA attached to the motion, authenticated by Molton, and signed by Plaintiff is the operative document containing the binding arbitration agreement.

(6) The burden shifts to Plaintiff to demonstrate sufficient grounds to preclude enforcement of the arbitration agreement. (See *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1057 ["...If the party opposing the petition raises a defense to enforcement...that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense."].) "[A]rbitration agreements, '[l]ike other contracts,' 'may be invalidated by 'generally applicable contract defenses, such as fraud, duress, or unconscionability.'" [Citation.] (McGill v. Citibank, N.A. (2017) 2 Cal.5th 945, 962.)

(7) The Court finds that Plaintiff has failed to meet this burden of proof. Plaintiff does not argue that the agreement is void or unenforceable on the ground of unconscionability or for any other reason. Based upon this record, the Court GRANTS the motion.

(8) Pursuant to Code of Civil Procedure section 1281.4, the Court GRANTS defendants' motion to stay this action pending completion of the arbitration. That statute provides, in relevant part as follows: "If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance

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with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.) “The purpose of the statutory stay [under section 1281.4] is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. [Citations.] [¶] In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.” (*Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1374-1375.)

For the above reasons, the Court GRANTS the motion to compel binding arbitration. Additionally, the Court GRANTS the motion to stay this action pending completion of arbitration. The Court enters its ORDERS accordingly.

The Court schedules a hearing regarding the status of arbitration and stay for February 12, 2027 at 8:30 a.m. in Courtroom 42.

Counsel for defendants shall give notice of this ruling and of the future hearing.